MERCHANT PARTNER AGREEMENT

AfriToGo LLC

Last Updated: November 3, 2026

This Merchant Partner Agreement (“Agreement”) is entered into by and between **AfriToGo LLC** (“AfriToGo,” “Platform,” “Company”) and the restaurant or grocery business entity enrolling on the AfriToGo platform (“Merchant,” “you”).

By submitting an application, registering for, accessing, or using the AfriToGo Merchant Application or Platform, Merchant agrees to be bound by this Agreement. **Submission of an application does not guarantee approval or activation.**

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1. PLATFORM ROLE & RELATIONSHIP

AfriToGo operates a **technology marketplace platform** that facilitates transactions between customers, independent merchants, and independent delivery partners.

Nothing in this Agreement creates a partnership, joint venture, agency, franchise, or employment relationship between AfriToGo and Merchant. Merchant operates as an **independent business**.

AfriToGo does **not**:

- prepare, manufacture, or package food or grocery products
- control Merchant’s day-to-day operations
- supervise Merchant employees
- act as the seller of record for Merchant items

Merchant remains solely responsible for its business, products, and services.

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2. MERCHANT RESPONSIBILITIES & LEGAL COMPLIANCE

Merchant is solely responsible for:

- food and product preparation
- quality, ingredients, accuracy, and portioning
- food safety and sanitation
- compliance with all applicable **federal, state, and local laws and regulations**
- obtaining and maintaining all required licenses, permits, approvals, and certifications

Merchant **represents and warrants** that:

- it is legally authorized to operate its business
- all items offered comply with consumer protection, food safety, labeling, and advertising laws
- all information provided to AfriToGo is accurate, complete, and current

AfriToGo may rely on Merchant's representations and is not obligated to independently verify regulatory compliance.

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3. PROFESSIONAL CONDUCT & ETHICAL STANDARDS

Merchant agrees to operate in a **professional, ethical, and lawful manner** at all times.

Merchant shall not:

- engage in deceptive, misleading, or abusive practices
- misrepresent menu items, pricing, ingredients, or availability
- discriminate against customers, delivery partners, or Platform personnel
- engage in conduct that may harm customers, delivery partners, AfriToGo, or the Platform's reputation

Violation of professional conduct standards may result in corrective action, suspension, or termination.

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4. MENU, PRICING & AVAILABILITY

Merchant:

- sets its own food or product prices
- controls menu availability and operating hours
- is responsible for menu accuracy, descriptions, allergens, and updates

Menu setup and publication may occur **after Merchant approval**, subject to Platform guidelines and review.

Prices presented to customers may include:

- Merchant-set prices
- applicable sales tax
- Platform service fees charged by AfriToGo
- optional tips for delivery partners

AfriToGo reserves the right to remove, modify, hide, or suspend menu listings that violate Platform standards, applicable law, or quality expectations.

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5. ORDERS & FULFILLMENT

Merchant agrees to:

- accept, prepare, and package orders promptly
- notify AfriToGo of unavailable items
- ensure orders are ready for pickup as indicated
- make a toilet facility available for use by food delivery workers lawfully on Merchant's premises to pick up an order for delivery, except where doing so would pose a health or safety risk, as required by New York City law

Failure to fulfill accepted orders may result in:

- refunds or credits to customers
- payout adjustments
- performance warnings, suspension, or removal from the Platform

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6. REFUNDS, ADJUSTMENTS & DISPUTES

Refunds, credits, and cancellations are governed by AfriToGo's **Refund & Cancellation Policy**, incorporated by reference.

Merchant acknowledges that:

- refunds attributable to Merchant error may be deducted from payouts
- AfriToGo may adjust or withhold payouts to resolve refunds, chargebacks, or disputes
- AfriToGo has final discretion in customer dispute resolution

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7. PAYMENTS, PAYOUTS & THIRD-PARTY PROCESSING

AfriToGo facilitates payment collection from customers on Merchant's behalf through a **third-party payment processing provider**.

Merchant payouts generally consist of:

Food/Product Subtotal + Applicable Sales Tax

minus

- AfriToGo commission (based on Merchant's applicable offer or plan)
- refunds, credits, chargebacks, or adjustments

Additional clarifications:

- **Service fees** charged to customers are retained by AfriToGo
- **Tips** are passed **100% to delivery partners** and are not included in Merchant payouts
- AfriToGo does **not** store Merchant bank or tax identification data

Payout eligibility is subject to verification and requirements imposed by the third-party payment processor. Failure to complete payout setup may delay or prevent payouts.

8. TAXES & SALES TAX PASS-THROUGH

Merchant is solely responsible for:

- determining applicable taxes on its sales
- filing, reporting, and remitting sales tax and other applicable taxes
- maintaining required tax registrations and certificates

AfriToGo may calculate and collect sales tax from customers at checkout and **pass such amounts through to Merchant** as part of payouts. AfriToGo does **not** assume Merchant's tax liability unless required by law.

9. BRAND, CONTENT & MARKETING RIGHTS

Merchant grants AfriToGo a limited, non-exclusive, royalty-free license to use Merchant's:

- name
- logo
- menu content

solely for operating, promoting, and marketing the Platform.

This license terminates upon termination of this Agreement.

10. PERFORMANCE STANDARDS & QUALITY THRESHOLDS

Continued participation on the Platform is subject to meeting minimum performance and customer experience standards, including:

- order accuracy and completeness
- frequency of missing or incorrect items
- repeated or substantiated customer complaints
- fulfillment reliability
- food quality and packaging consistency

A **pattern of poor performance**, including **excessive complaints relative to order volume**, may result in:

- warnings or corrective action
- probationary status
- temporary suspension

- permanent removal

Determinations are made in good faith and aligned with Platform quality standards.

11. INSURANCE

Merchant is responsible for maintaining appropriate insurance coverage for its business operations.

Proof of insurance is **not required at application**, but AfriToGo reserves the right to request evidence of insurance at any time. Failure to provide requested proof may result in suspension or termination.

12. SUSPENSION & TERMINATION

AfriToGo may suspend or terminate Merchant access for:

- performance failures
- policy violations
- fraud, abuse, or misrepresentation
- safety, legal, or regulatory concerns

Merchant may discontinue participation at any time, subject to outstanding obligations.

13. LIMITATION OF LIABILITY

To the maximum extent permitted by law:

- AfriToGo shall not be liable for indirect, incidental, special, or consequential damages
- AfriToGo's total liability shall not exceed amounts paid to Merchant in the **three (3) months** preceding the claim

14. INDEMNIFICATION

Merchant agrees to indemnify and hold harmless AfriToGo from claims arising from:

- food safety or quality issues
- regulatory or licensing violations
- Merchant operations or omissions
- breach of this Agreement

This indemnification excludes any damages or harm arising from acts or omissions occurring after the food or products have left the Merchant's premises.

15. DISPUTE RESOLUTION & ARBITRATION

Disputes shall be resolved through **binding arbitration**, except where prohibited by law.

Merchant waives participation in class or representative actions.

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16. GOVERNING LAW

This Agreement is governed by the laws of the **State of New York**, without regard to conflict-of-law principles.

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17. MODIFICATIONS

AfriToGo may modify this Agreement upon at least thirty (30) days' written notice. Continued use of the Platform after the notice period constitutes acceptance of updated terms.